Programme: Bachelor of Economics and Management

Course: Introduction to Tax Law

Course master: FORCHAP BEBONGNCHU: LLM Digitalisation and Tax Law WU Vienna, Senior Tax Inspector.

Continuous assessment Test: Time allowed 1h:30m

Documents allowed: Cameroon's General Tax Code and the teacher's notes

Give short and precise answers to the following questions (Questions 1 to 11 carry 1 mark each while questions 12 to 14 carry 3 marks each.

1/ Tax is a pecuniary payment required from persons, through authority and without consideration. Apart from the fact that this definition does not consider the policy aspect of tax, is the definition perfectly correct? Yes or No.

2/ Justify your answer in a single sentence to the answer in (1)

3/ Briefly states the principle of realism and "amoralism" in tax law and give two practical examples

4/ The Belfort Insurance Case brought out the fact that tax law doesn't lean on any legal discipline. True or false.

5/ What is the relationship between case law and general principles of law as sources of tax law.

6/ It is right to classify general principle of laws at the bottom of the pyramid of norms, when we know that general principles of laws are of two categories?

7/ In Cameroon's legal order, which one is superior, the constitution or international laws?

8/ The OHADA Uniform Act on Accounting and Financial Information is an important source of Tax law. Briefly explain with examples.

9/ Define direct and indirect tax and say on who the tax incident (tax burden) lies.

10/ The tax on transfer of money in Cameroon is an example of economic classification of taxes based on both the actor and the sector. Do you agree?

11/ Briefly differentiate between proportional tax system and progressive tax system. Which one is best suited in a country where differences in income are largely attributed to laziness?

12/ what is the major difference between the self-assessment method and official or administrative assessment method. How does compliance and enforced compliance affects the two?

13/ The territorial tax system and worldwide tax system can both lead to double taxation issues. Briefly explain. How does each of the system affects investment decisions of a multinational enterprise?

14/ Considering the knowledge you have acquired in the course "Introduction to Tax Law", briefly advise the state on how to achieve the "Import Substitution" policy acclaimed by policy makers in Cameroon.

Good luck and merry Christmas in advanced